

Case Memorandum — Matthew Oliver Reardon

■ HIGH URGENCY Intake Score: 80/100 · Status: Accepted · Prepared: June 23, 2026

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Client	Matthew Oliver Reardon	Phone	832-880-4970
Matter Type	Civil Rights (42 U.S.C. § 1983)	Jurisdiction	Galveston, TX (S.D. Tex.)
New Incident	June 22, 2026	Opposing Party	Galveston Police Dept.
Desired Outcome	Advice + possible representation	Prior Counsel	Ben Campagna

I. EXECUTIVE SUMMARY

Matthew Reardon is an investigative journalist and First Amendment auditor who has been the subject of documented, ongoing retaliation by the Galveston Police Department. He is currently the plaintiff in an active federal civil rights lawsuit against GPD officers and the City of Galveston (*Reardon v. Osteen et al.*, No. 3:25-cv-00203, S.D. Tex.). On June 22, 2026 — while engaged in constitutionally protected "cop watching" activity — he was arrested within minutes of being observed recording officers, jailed for 22 hours, and had his vehicle impounded. This new incident constitutes what appears to be a second retaliatory arrest and represents a significant escalation of a documented pattern of misconduct.

II. NEW INCIDENT — JUNE 22, 2026

Factual Summary

- Reardon was in a Walgreens parking lot in Galveston recording officers conducting a stop of another individual — constitutionally protected activity under the First Amendment.
- After the stop concluded, officers allegedly noted his license plate and waited for him to leave the lot.
- Immediately upon pulling out, officers initiated a traffic stop and arrested him for an expired license tag.
- He was incarcerated for 22 hours and his vehicle was impounded.
- An officer allegedly admitted the arrest would not have occurred but for Reardon's recording. Reardon believes the officer's body camera was off during this admission.

In the client's own words: "He even admitted that... I'm sure he had his body cam off when he said it, but he admitted that if I had not recorded them, they wouldn't have come after me and arrested me."

Damages

- 22 hours of wrongful incarceration
- Vehicle impounded (status unknown — follow-up required)
- Loss of liberty, emotional distress, potential loss of income

Evidence

- Client's recording of the police stop (confirm client has it preserved)
- Police body camera footage (officer may have disabled during key admission)
- Arrest records, booking records, impound documentation

III. PRIOR LITIGATION — REARDON V. OSTEEN ET AL.

Case Name	Reardon v. Osteen et al.
Case Number	3:25-cv-00203
Court	U.S. District Court, Southern District of Texas
Filed	June 30, 2025
Judge	Hon. Jeffrey V. Brown
Magistrate	Andrew M. Edison
Cause of Action	42 U.S.C. § 1983 — Civil Rights
Plaintiff's Counsel	Ben Campagna
Defense (UTMB)	Emily Barnes / Christopher Lindsey — TX AG's Office UTMB)

Critical: On February 25, 2025, attorney Ben Campagna filed a *Franks v. Delaware* motion establishing that Osteen's arrest affidavit contained deliberate falsehoods negating probable cause. Rather than face that hearing — which would have exposed the perjury on the record — **Galveston County dismissed the felony DWI charge entirely**. The criminal case is closed. The dismissal itself is significant evidence of consciousness of guilt.

IV. LEGAL ANALYSIS & THEORIES

1. First Amendment Retaliation (New Incident)

Recording police in public is clearly established First Amendment-protected activity in the Fifth Circuit. The temporal proximity between Reardon being observed recording and the immediate traffic stop, combined with an officer's alleged admission, establishes strong retaliatory motive. *See Buehler v. City of Austin*, 824 F.3d 548 (5th Cir. 2016).

2. Fourth Amendment — Pretextual/Retaliatory Arrest

While an expired tag provides technical probable cause, *Nieves v. Bartlett*, 139 S. Ct. 1715 (2019) recognizes an exception where a plaintiff presents objective evidence that officers would not ordinarily enforce the law — particularly where an officer's own admission establishes retaliatory intent.

3. Pattern of Conduct / Ongoing Retaliation

This is the second documented retaliatory arrest by GPD. The prior arrest (Aug. 11, 2023) was dismissed when Galveston fled from a *Franks* hearing. The June 22, 2026 arrest occurred while an active §1983 case naming these officers was pending in federal court. This pattern is highly probative and may support punitive damages.

4. Witness Intimidation / Obstruction

Arresting an active federal plaintiff while his §1983 case is pending raises serious questions about obstruction of justice and witness intimidation. This should be evaluated for both civil liability and potential criminal referral.

5. Malicious Prosecution

If the expired tag charge is pursued without merit, a malicious prosecution claim will lie. If dismissed (as with the DWI), it further solidifies the documented pattern of using criminal process as a weapon.

V. REQUIRED FOLLOW-UP

1. Confirm client has his June 22 recording preserved and in hand.
2. Immediately send litigation hold letter for body camera footage from June 22.
3. Obtain names and badge numbers of arresting officers from June 22 incident.
4. Confirm current status of the expired tag criminal charge.
5. Confirm status of impounded vehicle — client may be accruing daily fees.
6. Coordinate with Ben Campagna re: existing §1983 case and whether new incident can be incorporated or filed as a related matter.
7. Obtain full docket from 3:25-cv-00203 via PACER.
8. Evaluate whether June 22 officers are among the John Doe defendants already named in the pending case.

VI. TIMELINE

Date	Event
Aug. 11, 2023	False DWI arrest by GPD (Officer Osteen). Warrantless forced blood draw at UTMB. Toxicology: zero alcohol.
Aug. 2023 – Early 2025	

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